

Deliberation SAN-2023-025 of December 29, 2023

National Commission on Informatics and Liberties

Nature of the deliberation: Sanction

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Deliberation of the restricted formation No. SAN-2023-025 of December 29, 2023, concerning the company TAGADAMEDIE

The National Commission on Informatics and Liberties, convened in its restricted formation composed of Mr. Alexandre LINDEN, president, Mr. Philippe-Pierre CABOURDIN, vice-president, Ms. Isabelle LATOURNAIRE-WILLEMS and Ms. Christine MAUGÜÉ, Mr. Alain DRU and Mr. Bertrand du MARAIS, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of personal data and the free movement of such data;

Considering Law No. 78-17 of January 6, 1978, relating to data processing, files, and freedoms, notably its Articles 20 and following;

Considering Decree No. 2019-536 of May 29, 2019, taken for the application of Law No. 78-17 of January 6, 1978, relating to data processing, files, and freedoms;

Considering Deliberation No. 2013-175 of July 4, 2013, adopting the internal regulations of the National Commission on Informatics and Liberties;

Considering Decision No. 2022-054C of March 25, 2022, of the president of the National Commission on Informatics and Liberties, charging the Secretary General to conduct or have conducted a verification mission of the processing operations implemented by the company TAGADAMEDIE or on its behalf, in any location likely to be concerned by their implementation;

Considering the decision of the president of the National Commission on Informatics and Liberties designating a rapporteur before the restricted formation, dated June 22, 2023;

Considering the report of Ms. Valérie PEUGEOT, rapporteur commissioner, notified to the company TAGADAMEDIE on August 25, 2023;

Considering the written observations submitted by the company TAGADAMEDIE on September 29, 2023;

Considering the rapporteur's response notified to the company on October 20, 2023;

Considering the written observations submitted by the company TAGADAMEDIE on November 20, 2023;

Considering the closure of the investigation, notified to the company on November 22, 2023;

Considering the oral observations made during the session of the restricted formation on December 7, 2023;

Considering the other documents in the file;

Present at the session of the restricted formation:

- Ms. Valérie PEUGEOT, commissioner, heard in her report;

As representatives of the company TAGADAMEDIE:

- [...].

The company TAGADAMEDIE having spoken last;

The restricted formation adopted the following decision:

I. Facts and Procedure

1. The company TAGADAMEDIE (hereinafter "the company") is a simplified joint-stock company (SAS) with a capital of 100,000 euros, located at 55 rue Legendre in PARIS (75017). Established in 2015, it primarily operates online contest and product testing sites through which it collects prospect data. This data is then sold to advertising partners conducting solicitation operations.

2. In 2016, the company TAGADAMEDIE acquired 100% of the company [...]. Established in 2004, the company [...] distributes newsletters that include commercial messages on behalf of advertising clients. The newsletters are sent to prospects whose data has been collected by the sites published by

the company TAGADAMEDIA or the company [...].

3. In 2023, the company TAGADAMEDIA had six employees. It achieved a turnover of [...] euros for the year 2022, with a net profit of [...] euros. For the period from January 1, 2023, to August 31, 2023, its turnover amounted to [...] euros.

4. In accordance with Decision No. 2022-054C of March 25, 2022, of the president of the Commission, a delegation from the CNIL conducted an online control mission of the website accessible via the URL <https://www.tagadamedia.com/fr> to verify compliance with the provisions of Law No. 78-17 of January 6, 1978.

modified regarding information technology, files, and freedoms (hereinafter "the Data Protection Act" or "Act of January 6, 1978") and Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of personal data and the free movement of such data (hereinafter "the Regulation" or "GDPR").

5. This online audit resulted in report no. 2022-054/1 dated May 16, 2022, notified on May 27, 2022, to the company.

6. In accordance with decision no. 2022-054C of March 25, 2022, by the President of the CNIL, a delegation from the Commission conducted an on-site audit of the company TAGADAMEDIA. Reports no. 2022-054/2 and no. 2022-054/3 dated May 18 and 19, 2022, were drawn up and notified to the company by a letter dated May 23, 2022.

7. By letters dated June 3 and 10, 2022, the company provided the requested elements as part of the online and on-site audits. On July 13 and September 30, 2022, the audit delegation sent additional requests, to which the company responded on July 26 and October 12, 2022.

8. On October 18, 2022, a second online audit was initiated by the CNIL services. Report no. 2022-054/4 was notified on December 5, 2022, and the company provided the requested elements on December 20, 2022. A final additional request was sent on May 3, 2023, to which the company responded on May 22, 2023.

9. On June 22, 2023, the President of the Commission, based on Article 22 of the Act of January 6, 1978, appointed Ms. Valérie PEUGEOT as the rapporteur for the purpose of examining these elements.

10. On August 25, 2023, following her examination, the rapporteur notified the company of a report detailing the breaches of Articles 5, 6, 30, and 32 of the GDPR that she deemed to have occurred in this case. This report proposed that the restricted formation impose an administrative fine against the company. It also proposed that this decision be made public.

11. On September 29, 2023, the company submitted observations in response to the rapporteur's report.

12. At the request of the rapporteur and by decision no. 2023-235C of October 17, 2023, by the President of the CNIL, a delegation from the CNIL conducted an online audit to verify the compliance of any processing accessible from the URL

"<https://testonsensemble.com/testez-de-nouveaux-produits/signup/1>" or concerning personal data collected from this URL. This audit resulted in report no. 2023-235/1.

13. On October 20, 2023, the rapporteur's response was notified to the company.

14. On November 20, 2023, the company sent new observations in response to those of the rapporteur.

15. By letter dated November 21, 2023, the rapporteur informed the company that the examination was closed, in accordance with III of Article 40 of Decree no. 2019-536 of May 29, 2019, taken for the application of the Data Protection Act.

16. The rapporteur and the company presented oral observations during the session of the restricted formation on December 7, 2023.

****I. Reasons for the Decision****

****A. On the breach of the obligation to have a legal basis for the processing implemented****

17. According to Article 6, paragraph 1, of the GDPR, "Processing shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary in order to protect the vital interests of the data subject or of another natural person; **

was subsequently replaced by the two-button form in 2018.²⁵ The company asserts that the two-button form was designed to ensure that users could clearly express their consent or refusal regarding the transmission of their data to partners for commercial prospecting. It emphasizes that the button labeled "I ACCEPT" was distinct from the button labeled "I REFUSE," allowing for a clear and unequivocal choice.²⁶ The company also highlights that it has implemented measures to ensure that users are informed about their rights regarding data protection and the implications of their choices. It states that users are provided with comprehensive information about how their data will be used and the potential consequences of consenting to data sharing.²⁷ In conclusion, the company maintains that it has complied with its obligations under Article 6 of the GDPR, as clarified by the provisions of Article 4, paragraph 11 of the GDPR, by obtaining valid consent for the processing of personal data for commercial prospecting purposes. It argues that the design of its data collection forms allows for a free and informed choice by users, thereby upholding the principles of data protection and privacy.

is today obsolete, the two-button form having been effective since 2017. Following the receipt of the first report from the rapporteur, the company indicated that it had implemented a new type of form, which it considers compliant with the requirements of the GDPR. According to the company, the explanatory text is perfectly readable and contains all the necessary information for the user, who does not present any particular vulnerability. It adds that the position of the buttons, displaying the "I ACCEPT" button first with explanatory text in smaller font, as it appears on the new form, would be considered "neutral," according to studies on cookies produced by the CNIL, and would therefore be lawful. The company specifies that it is possible to continue the user journey without accepting to receive offers from partners. In this regard, the company notes that the CNIL has not published any specific recommendations on the digital marketing sector. It specifies that it has implemented numerous measures to ensure the respect of individuals' rights and communicates statistics revealing a very high number of "opt-in" individuals and a low number of "non-opt-in" individuals, meaning those who have requested to unsubscribe / requested the deletion of their data / or filled out another contest entry form while refusing the transmission of their data. Finally, the company asserts that it has never intended to deceive or mislead the prospects registered in its database, as the success of its business relies on the quality of its data collection practices and the individuals registered in its database.

The restricted formation first notes that both the data protection policy, accessible via the websites, and the company's processing activity register, provide that the legal basis for the transmission of prospect data for electronic, telephone, or postal marketing purposes is consent, which the company confirms. The restricted formation recalls that the specific consent required by the provisions of Article 6 of the GDPR can only result from the express consent of the user, given knowingly after adequate information about the use that will be made of their personal data. It is important in this regard to ensure that the individuals concerned have given unequivocal, specific, free, and informed consent when their personal data is collected through contest entry forms.

The restricted formation notes in this regard that the work conducted on the practices implemented concerning cookies regarding consent collection banners can usefully serve to assess more generally the conditions for obtaining free, unequivocal, specific, and informed consent, and serve as a reference in terms of commercial prospecting when it is based on the collection of consent.

Furthermore, regarding the same conditions of consent, the Court of Justice of the European Union (CJEU) specified, in its decision Planet49 GmbH: "Article 7(a) of Directive 95 provides that the consent of the data subject can make such processing lawful provided that this consent is 'unequivocally' given by the data subject. However, only an active behavior on the part of this person to express their consent is capable of fulfilling this requirement" (CJEU, Grand Chamber, October 1, 2019, Planet49 GmbH, C-673/17, ECLI:EU:C:2019:801, §54). Therefore, it should be considered that in the absence of unequivocal consent, consent must be regarded as lacking, which renders the processing unlawful due to the lack of a legal basis. More specifically regarding the methods of obtaining consent, the CJEU states that "the manifestation of will referred to in Article 2(h) of the directive... 95/46 must, in particular, be "specific," in the sense that it must precisely relate to the processing of the concerned data and cannot be inferred from a manifestation of will having a distinct object. In this case, contrary to what Planet49 has argued, the fact that a user activates the participation button for the promotional game organized by this company cannot suffice to consider that the user has validly given their consent to the placement of cookies (Idem, §§ 58-59).

32. Furthermore, the Council of State has held that "free, specific, informed, and unambiguous consent can only be an express consent of the user, given with full knowledge of the facts and after adequate information about the use that will be made of their personal data." (CE, 10th and 9th chambers combined, June 19, 2020, Google LLC, no. 430810, pt. 21).

33. The restricted formation also notes, by way of example, that the guidelines 5/2020 on consent, adopted on May 4, 2020, by the "Article 29" working group (which has become the European Data Protection Board, hereinafter "EDPB"), specify that the free nature of consent "implies a real choice and control for the concerned individuals. Generally, the GDPR states that if the concerned individual is not genuinely able to exercise a choice, feels compelled to consent, or will suffer significant negative consequences if they do not give their consent, the consent is not valid [...] In general terms, any pressure or inappropriate influence exerted on the concerned individual (which can manifest in various ways) preventing them from exercising their will will render the consent invalid."

34. By way of illustration and comparison, in its deliberation no. 2020-092 of September 17, 2020, adopting a recommendation proposing practical modalities for compliance in the case of the use of "cookies and other trackers," the Commission thus recommends that the concerned organizations ensure "that users fully understand the options available to them, notably through the chosen design and the information provided (§ 10) [...] In order not to mislead users, the Commission recommends that data controllers ensure that the interfaces for collecting choices do not incorporate potentially misleading design practices that may lead users to believe that their consent is mandatory or that visually emphasize one choice over another. It is recommended to use buttons and a font of the same size, offering the same ease of reading, and highlighted in the same way" (§ 34). It adds that it is important "to ensure that the information accompanying each actionable item allowing for the expression of consent or refusal is easily understandable and does not require significant concentration or interpretation efforts from the user. Thus, it is particularly recommended to ensure that it is not drafted in such a way that a quick or inattentive reading could lead to the belief that the selected option produces the opposite of what users thought they were choosing." (§ 23). Otherwise, the unambiguous nature of the consent would not be characterized.

35. The restricted formation also recalls that studies conducted on the practices of digital interfaces, particularly regarding cookies, highlight the considerable impact of the appearance of consent collection banners on users' choices, which may encourage them to make choices that do not reflect their preferences regarding data sharing.

36. In this case, it appears from the documents in the file that the company TAGADAMEDIA transmits the collected data to partners, namely the first name, last name, title, date of birth, postal address, of electronic mail, the phone number of prospects, collected via its contest, product testing, and survey sites. These partners then carry out commercial prospecting operations, notably by electronic means, towards these prospects. 37. The restricted formation notes that, at the time of the checks, access to two data collection forms was observed on the sites used to collect prospect data: a single-button form

and a two-button form. 38. Regarding the single-button form, the restricted formation notes that below the fields allowing the concerned individuals to enter their contact details is a single button "I VALIDATE" on a green background with an arrow. Above this button, a text written in a font size significantly smaller than that used for the buttons specifies that by clicking on said button, the user agrees that the collected data will be used to send them offers from the company's partners. Hyperlinks allow access to the data protection policy and the list of concerned partners. The end of the text specifies that if the user wishes to continue without receiving offers from the company's partners, they can click on a link present in the text ("I click here"). Furthermore, a checkbox is provided to accept the rules of the operation. 39. Thus, the user confronted with this form can either check the box to accept the rules of the operation and click on the green button "I VALIDATE" to participate in the contest while agreeing that their data will be used to send them offers from the company's partners, or check the box to accept the rules and click on the link "I click here" allowing them to continue without receiving these offers. 40. The restricted formation considers that as designed, the proposed form does not allow the concerned individuals to validly express a choice reflecting their preferences regarding the transmission of data for commercial prospecting purposes. The overall overview of the interface particularly highlights the button "I VALIDATE," which, due to its size and color, stands out from the other information provided. Similarly, its title suggests more the conclusion of the user journey than a transmission of data to partners. Finally, its placement and the use of the verb validate give the impression that it must necessarily be clicked to complete the registration and participate in the contest. Conversely, the hyperlink allowing participation in the contest without agreeing to the transmission of their data is presented in the body of the text, in a font size significantly smaller than that used for the buttons and without particular emphasis, so it does not appear intuitive that it is possible to participate without clicking on the button "I VALIDATE" and therefore without transmitting their data to third parties for prospecting purposes. The consent obtained is therefore deprived of its unequivocal and free character. 41. While noting that this form was still accessible in May 2022, at the time of the checks by the CNIL delegation, the restricted formation takes note that the company no longer uses it operationally. 42. Regarding the two-button form implemented from 2017 until the notification of the sanction report in 2023, the restricted formation notes that, below the fields allowing the concerned individuals to enter their contact details, there are two buttons: a button "I VALIDATE," written in white on a red background, and a button "I REFUSE," written in black on a gray background, with a font size smaller than that of the button "I VALIDATE." Above these buttons, a text written in a font size significantly smaller than that used for the buttons specifies that by clicking on the button "I VALIDATE," the user agrees that the data... that the company TAGADAMEDIA does not have valid consent to transmit the data of prospects to its partners for the purpose of conducting commercial prospecting operations, in accordance with Articles 6 and 4 of the GDPR.

52. The restricted formation also notes that the information provided to users regarding the processing of their data is insufficiently clear and transparent, which is a requirement under the GDPR.

53. Furthermore, the restricted formation emphasizes that the design of the forms and the presentation of options do not allow users to make an informed decision regarding their consent, as they may not fully understand the implications of their choices.

54. In light of these findings, the restricted formation concludes that the practices employed by TAGADAMEDIA in relation to data collection and consent do not comply with the legal requirements established by the GDPR.

55. The restricted formation recommends that TAGADAMEDIA revise its consent mechanisms to ensure that they are clear, unambiguous, and provide users with a genuine choice regarding the use of their personal data.

56. Additionally, TAGADAMEDIA should implement measures to enhance transparency in its data processing activities and ensure that users are adequately informed about the purposes of data collection and their rights under the GDPR.

57. The restricted formation urges TAGADAMEDIA to take immediate action to rectify these issues to ensure compliance with applicable data protection laws and to protect the rights of individuals regarding their personal data.

58. Finally, the restricted formation reserves the right to monitor TAGADAMEDIA's compliance with these recommendations and to take further action if necessary to ensure adherence to the GDPR. that the consent obtained through the latest form proposed by the company during the investigation does not meet the requirements of the GDPR and that the breach of Article 6 of the GDPR persists.

2) Regarding the transmission of prospect data to partners. The rapporteur notes that the company TAGADAMEDIA transmits prospect data to partners for direct marketing purposes via postal or electronic means. The rapporteur notes that the personal data protection policy, accessible via the company's website, specifies that the legal basis for the transmission of data to TAGADAMEDIA's partners for "postal or telemarketing prospecting" is consent.

53. The rapporteur observes that the lack of consent to the transmission of one's data does indeed allow the user to prevent the transmission of their email address. However, the rapporteur points out that, despite the absence of consent, the postal address or phone number is transmitted to partners for prospecting purposes via postal mail or telephone.

54. The rapporteur therefore considers that the company has engaged in unfair processing of the data of prospects who did not consent to their transmission to partners, which constitutes unfair processing, contrary to Article 5, paragraph 1, a) of the GDPR.

55. In defense, the company claims that it transmits data to its partners, on the one hand, for commercial prospecting purposes and, on the other hand, for the execution of technical operations and qualification, the latter purpose falling under legitimate interest. The transmission of database exports is done via a "registration design" specific to each partner. These registration designs may or may not include a column related to the status of "opt-in prospect." If the column is present, all data is transmitted, and the column must frame the use of prospect data (if it is indicated "opt-in = 0," the partner must not prospect on the transmitted data but will only carry out technical and qualification operations). If there is no column, the email address and phone number of the prospect are not transmitted, and the partner will only receive the postal details for technical and qualification operations.

56. The company argues that the use of postal data when prospects have refused the transmission of their data is not the result of a widespread practice and that it discovered the existence of this practice at the time of the inspection. It adds that if some partners have acted in this manner, this situation does not concern all partners, does not reflect an intentional act on the part of TAGADAMEDIA, and does not provide any economic advantage to the company.

57. Finally, the company specifies that it no longer transmits to its partners, since February 1, 2023, the data of prospects who have not given their consent ("non-opt-in").

58. The restricted panel notes that the personal data protection policy of the company states that: "In the event of your express acceptance, your data may also be used by Tagadamedia and/or its partners for: • Sending you commercial and promotional offers by email, including political or union-related content, by email, SMS/MMS, postal mail, or telemarketing • Sending you newsletters • Conducting statistical evaluation of site traffic • Performing segmentation and statistical cross-referencing. The legal basis for processing is consent."

59. The restricted panel considers that the purposes identified by the company as relating to the execution of technical operations and qualification, namely postal normalization, deduplication, telephone enrichment, etc., participate in the execution of the commercial prospecting operations of its partners. These processes are carried out based on data transmitted by the company TAGADAMEDIA, within the framework of contracts whose purpose is, notably with the company [...], "the technical integration of the TAGADAMEDIA SAS database at [...] and its commercialization for rental by [...]" (Article 1 of the

contract).

60. The restricted panel notes that the data of individuals who have not consented to their transmission to partners are fully or partially transmitted to partner companies for technical operations and qualification purposes and are used, in some cases, for prospecting purposes.

61. The restricted panel considers that as soon as a prospect does not consent to the transmission of their data to the company's partners, the company is not authorized to transmit them, including for the purpose of carrying out technical operations and qualification.

62. Moreover, the restricted panel notes that the company's privacy policy does not specify that the data of users who have refused the transmission of their data to partners for commercial prospecting purposes are nonetheless transmitted to these partners for other purposes and based on another legal basis.

63. The restricted panel observes that the company only became aware of the use of postal data by its partners for commercial prospecting purposes, while prospects had refused the transmission of their data, at the time of the inspection in 2022.

64. It believes that to transmit this data to its partners, and insofar as it has chosen the legal basis of consent for processing related to prospecting by post or by phone, the company should have obtained the consent of the individuals concerned, which is not the case here.

65. The restricted panel concludes, therefore, that a breach of Article 6 of the GDPR has occurred. It notes, however, that the company has not transmitted "non-opt-in" prospect data to its partners since February 1, 2023.

B. On the breach of the obligation to implement a record of processing activities

66. Article 30 of the Regulation states that the data controller, regardless of the number of its employees, is obliged to maintain a record of processing activities, as long as the processing of personal data is not occasional. In this case, the record of processing activities must include all the information listed in 1. of Article 30 of the GDPR, namely: the name and contact details of the data controller, its representative, and the data protection officer, the purposes of the processing, the categories of data subjects and the categories of personal data, any data transfers, and, where possible, the time limits for data erasure and a description of the technical and organizational measures implemented to ensure an appropriate level of data security relative to the risk.

67. The rapporteur noted that the company shares a record of processing activities with the company [...]. However, this record does not specify which of the companies acts as the data controller.

68. In defense, the company first points out that it has indeed established a record of processing activities and that it is a simplified model of a record proposed by the CNIL. It adds that this record does include all the mentions required by Article 30 of the GDPR.

69. It further adds that it is relatively rare for the CNIL to sanction organizations based on Article 30 of the GDPR and that decisions targeting this breach would concern more serious facts (total absence of a record, failure to comply after a formal notice, etc.).

70. The restricted panel notes that the company TAGADAMEDIA implements a record of processing activities, maintained jointly with the company [...], which it acquired, for processing related to human resources or prospecting activities.

71. The restricted panel notes that said record does not distinguish which company acts as the data controller for the activity in question. Indeed, it is not specified for human resources or prospecting activities whether it is TAGADAMEDIA or the company [...] that acts as the data controller. However, TAGADAMEDIA should have, given the number of data processed and its activity, ensured that its record of processing activities is exhaustive, precise, and up to date.

72. It follows from the above that the breach of Article 30 of the GDPR is established.

73. The restricted panel notes that the company has updated its record of processing activities, which is now compliant with the requirements of the GDPR.

C. On the breach of the obligation to ensure the security of personal data

74. Article 32, paragraph 1, of the GDPR provides that "Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing as well as the risks, the likelihood and severity of which vary, for the rights and freedoms of natural persons, the data controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk [...]" and in particular "means to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services" and a "procedure for regularly testing, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing."

75. The rapporteur notes

into account for determining the amount of the fine.⁸³ The restricted formation notes that the company has not committed a breach of Article 32 of the GDPR, which relates to the security of processing.⁸⁴ Consequently, there is no need to impose corrective measures as outlined in Article 20 of Law No. 78-17 of January 6, 1978, as the conditions for such measures have not been met.⁸⁵ The restricted formation concludes that the company has implemented appropriate technical measures to ensure a level of security commensurate with the risk, and therefore, no further action is required at this time. decides whether to impose an administrative fine and to determine the amount of this fine. The company states that it believes the amount proposed by the rapporteur, five hundred thousand euros, is not proportionate in light of the seriousness of the alleged facts. The company refers to the guidelines 04/2022 of the EDPB dated May 12, 2022, on the calculation of the amount of administrative fines. In light of these guidelines, it recalls that the processing undertaken does not involve a particular sensitivity, that the processing is not cross-border, that the harm suffered by the prospects is not substantial, and that it did not intend to deceive the prospects in the context of data collection.

84. Firstly, the restricted panel recalls that it must take into account, for the imposition of an administrative fine, the criteria specified in Article 83 of the GDPR, such as the nature, gravity, and duration of the violation, the measures taken by the data controller to mitigate the damage suffered by the data subjects, the degree of cooperation with the supervisory authority, and the categories of personal data concerned by the violation.

85. Regarding the obligation to have a legal basis for the processing carried out, the restricted panel emphasizes first that the ecosystem of data resale from partner to partner requires particularly strong guarantees regarding the quality and validity of the consent obtained by the initial data collector, which partners rely on for commercial prospecting purposes. It recalls that the absence of valid consent collection deprives the transmission of prospect data to partners of a legal basis, which then appears illicit. It considers that the requirements must be particularly strengthened regarding the modalities of obtaining consent from users of the websites published by the company, whose purpose is to offer prospects of gains, these individuals not necessarily being aware of the scope of their agreement in the context of their registration. It also highlights that the company's prospect database contains approximately six million prospects.

86. The restricted panel also notes that, by transmitting prospect data to its partners for technical operations and qualification while this processing falls under commercial prospecting and the data subjects have not specifically consented to this transmission, the company TAGADEMEDIA did not have a legal basis. The restricted panel notes that the company has ceased this practice.

87. Regarding the failure to implement a register of processing activities, the restricted panel believes that even if this failure is of low severity, the imposition of a fine appears justified.

88. In light of all these elements, the restricted panel considers that an administrative fine should be imposed for the breaches of Articles 6 and 30 of the GDPR.

89. Secondly, regarding the amount of the administrative fine, the restricted panel recalls that certain violations of the GDPR identified involve breaches of principles that may be subject, under Article 83 of the GDPR, to a fine of up to 20,000,000 euros or up to 4% of the total global annual turnover of the previous financial year, with the higher amount being retained.

90. It considers that the company's activity and its financial situation must be taken into account.

91. Therefore, in view of the company's responsibility, its financial capabilities, its cooperation during the procedure, and the relevant criteria of Article 83, paragraph 2, of the GDPR, the restricted panel believes that a fine of seventy-five thousand euros is justified.

92. Thirdly, regarding the imposition of an injunction, the restricted panel...

notes that the consent obtained through the collection form proposed by the company in the context of its initial observations, as referred to in paragraphs 47 and 48, still does not present a clear character. The restricted formation considers it necessary to issue an injunction on this point. 93. In light of these elements, the restricted formation deems the imposition of a penalty of one thousand (1,000) euros per day of delay justified and payable after a period of one month. 94. Fourthly, regarding the publicity of the sanction, the company raises the disastrous consequences for its reputation by being labeled as a negligent actor, even though it is genuinely committed to complying with GDPR standards. This publicity would impact its reputation with both its economic partners and internet users. Therefore, it requests that the decision not be made public or, failing that, that it be anonymized within fifteen days following publication. 95. The restricted formation considers that the publicity of this decision is justified given the seriousness of certain breaches involved, the scope of the processing, and the number of individuals concerned, which is approximately 6 million prospects. 96. It also notes that this measure will inform the individuals affected by the company's prospecting operations. This information will allow them, if necessary, to assert their rights against the company. 97. Finally, it believes that this measure is proportionate as the decision will no longer specifically identify the company after a period of two years from its publication. FOR THESE REASONS The restricted formation of the CNIL, after deliberation, decides to: • impose an administrative fine on the company TAGADAMEDIA in the amount of seventy-five thousand (75,000 €) for breaches of Articles 6 and 30 of the GDPR; • issue an injunction against the company TAGADAMEDIA to implement on the sites it operates a data collection form for prospects that allows for the collection of free, specific, informed, and unambiguous consent regarding the transmission of their personal data to partners for prospecting purposes; • attach to the injunction a penalty of one thousand (1,000) euros per day of delay after a period of one month following the notification of this deliberation, with proof of compliance to be submitted to the restricted formation within this timeframe; • make public, on the CNIL website and on the Légifrance website, its deliberation, which will no longer allow for the specific identification of the company after a period of two years from its publication. The President Alexandre LINDEN This decision may be subject to an appeal before the Council of State within two months from its notification.